

Form No: HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN.
JUDICIAL DEPARTMENT

W.P. No.2907 of 2013.

Sohail Tufail.

Versus

Secretary Health etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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10.06.2015. Mian Babar Saleem, Advocate for the petitioner (W.P.No.2907/2013).

Sahibzada Muhammad Nadeem Fareed, Advocate for the petitioner (W.P.No.4183/2012)

Mr. Aziz-ur-Rehman, A.A.G. with Dr. Nasir Javed D.M.S. Nishtar Hospital, Multan.

This order will dispose of two writ petitions (W.P. No. 2907 of 2013 and W.P. No.4183 of 2012) because both these have identical facts and circumstances.

2. Brief facts necessary for disposal of both these writ petitions are that petitioner Sohail Tufail (W.P. No.2907/2013) was appointed as Hospital Pharmacist (BS-17) at Nishtar Hospital, Mutan against the existing vacancy on adhoc basis initially for a period of one year and he started performing his duty w.e.f. 28.05.2011. Subsequently his adhoc appointment was extended for further period of one year. The petitioner was diligently performing his duties without any complaint, but on 14.02.2013, respondent No.1/ Secretary Health withdrew his re-appointment order dated 14.07.2012 and since then petitioner has been deprived from his job.

Petitioner Malik Muhammad Yousaf (W.P. No.4183/2012) was appointed as Hospital Pharmacist on adhoc basis on 04.07.2010 in the said hospital for a period of one year and he started performing his duty. After expiry of the adhoc period, like other appointees,

petitioner submitted an application for extension of contract period which was forwarded to respondent No.1 on 14.05.2011. But the said application was not being decided, so, he filed W.P. No.12357/2011 before this Court, which was disposed of with the direction to respondent No.1 to decide the petitioner's application within two weeks after affording an opportunity of hearing to the petitioner, but the respondent No.1 did not bother to comply with the order of this Court, hence petitioner was constrained to file contempt petition before this court. During the proceedings of contempt petition, respondent/Department submitted a letter before this Court that petitioner's request for further appointment as Hospital Pharmacist was declined as the petitioner had not succeeded in the examination conducted by the Punjab Public Service Commission. The said contempt petition was disposed of with the observation that petitioner may pursue the remedies available to him under the law. Through this petition, petitioner has assailed order dated 14.02.2012, passed by respondent No.2.

2. Learned counsel for the petitioners contend that no regular incumbents have replaced them and respondents have committed irregularity and discrimination by depriving them from their jobs, because other appointees were granted extension in their contract.

3. On the other hand, learned A.A.G. contends that contract of petitioners was terminated when Punjab Public Service Commission recommended 113 regular incumbents in 2011 and the said recommendees have been posted all over the Punjab. The Authority has already formulated policy that no further appointment shall be made on adhoc basis unless the requisition is

sent to the Punjab Public Service Commission for regular appointment as provided under Rule 22-A (A&CS) Rule, 1974. The petitioner remained fail to qualify for the said post in the requisite test and viva of the PPSC. He prayed for dismissal of both the petitions.

4. Heard.

5. The contract of petitioners was terminated when Punjab Public Service Commission recommended 113 regular incumbents in 2011 and the said recommendees have been posted all over the Punjab. The Authority has already formulated policy that no further appointment shall be made on adhoc basis unless the requisition is sent to the Punjab Public Service Commission for regular appointment as provided under Rule 22-A (A&CS) Rule, 1974. The petitioner remained fail to qualify for the said post in the requisite test and viva of the PPSC.

6. Adhoc appointment did not confer on an appointee any right or interest to continuous appointment and that service of such an appointee could be dispensed at any moment without assigning any reason. Moreover, the appointment orders show that appointment was only for the period of one year from the date of joining and shall automatically terminated on the expiry of the said period or till the availability of a regular incumbent / selectee of the Punjab Public Service Commission, whichever is earlier. By accepting the referred to terms and conditions of service, the petitioners are estopped to raise any question on legality or validity of their contractual employment. Reliance can be placed on the following judgments:-

i. Abdul Sattar Khan Durani vs. Province of Balochistan through Chief Secretary.(2015 PLC (CS) 489)

- ii. *Akhtar Gohri vs. Province of Sindh*. (2014 SCMR 1149)
- iii. *Government of Balochistan v. Dr. Zahida Kakar* (2005 SCMR 642)
- iv. *Nila Khalid v. Pakistan through Secretary Defence and others*. (PLD 2003 SC 420)
- v. *Muhammad Ali Satahzai and others v. Appointing Authority of Additional District and Session Judges and others* (2011 PLC (C.S) 78)
- vi. *Dr. Rab Nawaz Malik vs. Province of Punjab* (2015 PLC (CS) 411)
- vii. *In Abdul Waheed and another v. Secretary, Ministry of Culture, Sports, Tourism and Youth Affairs, Islamabad and another* (2002 SCMR 769)
- viii. *Dr. Mubashir Ahmed v. PTCL through Chairman Islamabad and another* (2007 PLC (C.S) 737)
- ix. *Muhammad Ali Satahzai and others v. Appointing Authority of Additional District and Session Judges and others* (2011 PLC (C.S) 78)

7. In the case of Abdul Sattar Khan Durani vs. Province of Balochistan through Chief Secretary. **(2015 PLC (CS) 489)**, it was held as under:-

“8. In view of above discussion and constant view rendered by the Hon'ble Supreme Court of Pakistan and followed by this court in referred to judgments, we are of the considered opinion that continuance and time to time contractual employment does not confer any valuable right for regularization of service and the recommendations of the regularization committee contained in the impugned minutes dated 3rd June, 2014 are well reasoned, based upon the principles of natural justice because the petitioners were not appointed according to the law and rules framed thereunder. The positions, which the petitioners hold, were never advertised in any newspaper, their services were not obtained on basis of written test and interview, therefore, the Hon'ble Supreme Court of Pakistan is rendering a constant view that contract/ad hoc employee cannot claim any vested right. Moreover, the appointment orders of the petitioners show that their appointments were not only on contract basis but it has also mentioned

therein that their services may continue as long as the Commission finalizes the recruitment process and their notification of appointment further stipulates that they are temporary and contract employees and their services will be liable to termination on twenty four hours notice from either side on any ground in lieu of one month's pay will be paid or deposited. By accepting the referred to terms and conditions of service the petitioners are estopped to raise any question on legality or validity of their contractual employment.”

9. In the case of *Government of Balochistan v. Dr. Zahida Kakar* (**2005 SCMR 642**), it was held as under:-

"It is an admitted fact that the service of the respondents was on purely temporary basis and specifically on contract. Such appointment terminates on expiry of contract period or any extended period on choice of the employer or the appointment authority. Prima facie it does not create any vested right."

10. In the case of *Nila Khalid v. Pakistan through Secretary Defence and others*. (**PLD 2003 SC 420**), it was held as under:-

“It was laid down that ad hoc appointment did not confer on a appointee any right or interest to continuous appointment, seniority or promotion and that service of such an appointee could be dispensed at any moment without assigning any reason."

11. In *Abdul Waheed and another v. Secretary, Ministry of Culture, Sports, Tourism and Youth Affairs, Islamabad and another* (**2002 SCMR 769**) dictum was laid down as under:---

"We have considered the contentions raised by the learned counsel and found same are without substance. We may observe that despite being no specific bar for exercise of powers of competent authority by an officiating director, still he would not be supposed to exercise such powers of appointment/promotion of the employees without the proper sanction and allocation of budget besides observing the prescribed procedure

including a advertisement of the post in the newspaper. The appointment made by the officiating director without following the prescribed procedure would not be legal and consequently the petitioner would neither have any right to hold any such post nor were entitled to the salaries and other benefits attached with the said post."

12. In another case titled, as Dr. Mubashir Ahmed v. PTCL through Chairman Islamabad and another (**2007 PLC (C.S) 737**) the Hon'ble Supreme Court of Pakistan observed as follows:---

"The order dated 15-9-1996, 28-4-1997 and 4-2-2000 show that the petitioner was appointed on contract/part time basis. There is no cavil to the proposition that an employee appointed/ engaged on contract/part time basis has got no vested right to claim for being absorbed/appointed on regular/permanent basis."

13. Muhammad Ali Satakzai and others v. Appointing Authority of Additional District and Session Judges and others (**2011 PLC (C.S) 78**)

"Furthermore, ad hoc appointment did not confer on the petitioners any right or interest to continuous appointments, seniority or promotion under the law therefore status of the petitioners could not be changed unless regularized by adopting the procedure/method, as such, request so made has no legal footing and same is declined. Reliance is also placed on the following judgments. 1987 SCMR 167, PLD 2003 SC 420, 2003 SCMR 1269 and 2005 PLC (C.S.) 1085."

14. Learned counsel for the petitioners also submits that they have been discriminated in respect of their appointments as ad hoc employees. Not a single act of discrimination has been pointed out. Those who qualify in interview and test cannot be equated with those who fail. The argument of the learned counsel, as to discrimination, is misconceived thus repelled.

15. In the end, it is observed that this Court does not interfere in policy matter as it squarely falls within the domain of Government unless it is shown to be *mala fide*, illegal and unconstitutional.

16. The upshot of above discussion is that two writ petitions have no merits and thus are hereby dismissed.

(Muhammad Sajid Mehmood Sethi)
Judge

Mian Farrukh

Approved for reporting.